

Amendment No. 1 to HB6003

Mitchell
Signature of Sponsor

AMEND Senate Bill No. 6003*

House Bill No. 6003

by adding the following as a new Section 9-4-217 in the amendatory language of SECTION 1:

9-4-217. Volunteer neighbor assistance fund.

(a) There is created a fund within the state treasury to be known as the volunteer neighbor assistance fund. The fund consists of grants, appropriations by the general assembly, federal funds, to the extent permitted by federal law and regulation, and any other moneys made available to the Tennessee emergency management agency for the purposes of such fund from any other source or sources. It is the legislative intent that the fund also consists of fifty million dollars (\$50,000,000) to be transferred from the balance of the revenue fluctuation reserve.

(b) Moneys deposited in the fund must be invested for the benefit of the fund pursuant to § 9-4-603.

(c) Except as provided in subsection (a), moneys in the fund must not revert to the general fund, but must remain available to be used exclusively for the purpose specified in this section.

(d) Subject to appropriations and the availability of funds, the Tennessee emergency management agency shall use the volunteer neighbor assistance fund to provide grants in the amount of ten thousand dollars (\$10,000) to homeowners who have lost or sustained damage to their homes as a result of a natural disaster.

(e) The Tennessee emergency management agency shall develop and publish an application form for households to apply for grant funds. The application must require a demonstration of need.

(f) The volunteer neighbor assistance fund is subject to examination and audit by the comptroller of the treasury.

(g) If a person filing a claim or invoice for a grant or grant funds, including for reimbursement, knowingly makes a false, fictitious, or fraudulent statement or representation, or knowingly submits false, fictitious, or fraudulent documentation or information to a county, the Tennessee emergency management agency, or the state treasurer, then such person is liable under the False Claims Act, compiled in title 4, chapter 18.

(h) Rules may be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, in order to ensure the funds are received and expended for the purposes consistent with this section.